

Andhra Pradesh Infrastructure (Transparency through Judicial Preview) (Salaries, Allowances and other conditions of Service of Hon'ble Judge) Rules, 2019

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State of Andhra Pradesh - Act

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ANDHRA PRADESH

India

Andhra Pradesh Infrastructure (Transparency through Judicial Preview) (Salaries, Allowances and other conditions of Service of Hon'ble Judge) Rules, 2019

Rule

ANDHRA-PRADESH-INFRASTRUCTURE-TRANSPARENCY-THROUGH-JUDICIAL-PREVIEW-SALARIES-ALLOWANCES-AND-OTHER-CONDITIONS-OF-SERVICE-OF-HON-BLE-JUDGE-RULES-2019 of 2019

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Andhra Pradesh Infrastructure (Transparency through Judicial Preview) (Salaries, Allowances and other conditions of Service of Hon'ble Judge) Rules, 2019

Published vide Notification No. G.O.Ms.No.88, Industries, Infrastructure, Investment & Commerce (Airports), dated

16.10.2019

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Notification No. G.O.Ms.No.88. - In exercise of the powers conferred under sub-section (1) of section 16 of the Andhra Pradesh Infrastructure (Transparency through Judicial Preview) Act, 2019 (Act.No.34 of 2019), the Government of Andhra Pradesh hereby makes the following rules: -

1.

Short Title And Commencement.

- These rules may be called the Andhra Pradesh Infrastructure (Transparency through Judicial Preview) (Salaries, Allowances and other conditions of Service of Hon'ble Judge) Rules, 2019.

2.

Definitions.

(1)

"Act" means the Andhra Pradesh Infrastructure (Transparency through Judicial Preview) Act 2019;

(2)

"acting Judge" means a person appointed to act as a Judge of the High Court [under clause (2) of article 224 of the Constitution];

(3)

"High Court" means the High Court for the State of Andhra Pradesh;

(4)

"Hon'ble Judge" means person who is or has been Hon'ble Judge of the High Court appointed under sub-section (1) of section 3 of the Act

(5)

"Pension" means a pension of any kind whatsoever payable to or in respect of the Hon'ble Judge and includes any gratuity or other sum or sums so payable by way of death or retirement benefits;

3.

Applicability.

- The service conditions of the Hon'ble Judge shall be governed by the High Court Judges (Salaries and Conditions of Service) Act, 1954 (Act No. 28 of 1954) and the High Court Judges Rules, 1956 as subsequently amended from time to time and the instructions and orders issued by the Government of India from time to time with reference to those rules to the extent they are relevant subject to the variations and modifications contained in these rules.

4.

Salaries and Allowances.

- (i) In case of sitting judge being appointed under the provisions of the Act, the salary of the Hon'ble Judge shall be equal to the salary being drawn, as on date of appointment together with other emoluments including H.R.A, D.A, T.A, leave facilities etc., as per the High Court Judges (Salaries and Conditions of Service) Act, 1954 (Act No.28 of 1954) and the High Court Judges Rules, 1956 as subsequently amended from time to time.

(ii)

In case of retired Judge, salary equal to that drawn by a sitting judge of High Court, minus pension paid to him, together with other emoluments like H.R.A, D.A and T.A, leave facility as payable to a sitting judge of the High Court as per the High Court Judges (Salaries and Conditions of Service) Act, 1954 (Act No.28 of 1954) and the High Court Judges Rules, 1956 as subsequently amended from time to time.

5.

Vacation Holidays.

- The Hon'ble Judge shall have a vacation of thirty days in each calendar year.

The hours of work for the Hon'ble Judge and for the Officers and other employees deployed to assist the Hon'ble Judge under rule 3 (iii) of the Andhra Pradesh Infrastructure (Transparency through Judicial Preview) Rules, 2019, shall be such as may be decided by the Hon'ble Judge from time to time:

6.

Leaves.

- (1)The Hon'ble Judge shall be entitled to leave of various kinds as are admissible to the Judges of the High Court of Andhra Pradesh,

(2)

The authority competent to grant or refuse leave to the Hon'ble Judge or to revoke or curtail the leave granted to him/her shall be the Governor.

7.

Travelling Allowance.

- The Hon'ble Judge shall receive such reasonable allowance to him for the expenses incurred in travelling on duty within the territory of India and they shall be afforded such reasonable facilities in connection with travelling as may from time to time be prescribed in the case of Judges of the High Court of Andhra Pradesh respectively.

8.

Residential Accomodation.

(1)

The Hon'ble Judge shall be entitled without payment of rent, to the use of a furnished - official residence on par with Judge of the High Court of Andhra Pradesh.

(2)

The Hon'ble Judge who reside in his/her own house shall be paid house rent allowance besides an additional amount towards annual maintenance of the House and towards special repairs of the house in accordance with the rules as are applicable to High Court Judges.

9.

Conveyance Facility.

- The Hon'ble Judge shall be entitled to staff car and consumption of petrol as per the High Court Judges (Salaries and Conditions of Service) Act, 1954 (Act No.28 of 1954) and the High Court Judges Rules, 1956 as subsequently amended from time to time/ shall be provided a vehicle for official usage along with drivers.

10.

Dearness Allowance Etc..

- The Dearness Allowance, City Compensatory Allowance and other allowances payable to the Hon'ble Judge, shall be the same as those payable to the Judge of the High Court of Andhra Pradesh.

11.

Leave Travel Concession.

- The Leave Travel Concession Rules that are applicable to the Judges of the High Court of Andhra Pradesh shall apply to the Hon'ble Judge.

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